

Chief Justice's Court

Case :- WRIT - C No. - 21095 of 2023

Petitioner :- Rivendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shahnawaz Akhtar

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

Grievance of the petitioner is that all of a sudden, for the month of May 2023, bill of Rs. 94,977/- has been raised by the Electricity Department.

Learned counsel for the petitioner submits that earlier his electric bill was of Rs.300-400 per month.

Learned counsel for petitioner fairly admits that the petitioner has an alternative remedy of approaching Executive Engineer, Respondent No. 2 for redressal of his grievance under Section 6.5 of U.P. Electricity Supply Code 2005 and, therefore, he may be permitted to withdraw this petition at this stage for pursuing his case before the said authority.

Learned counsel for Electric Department has no objection to this proposition.

Considering the fair statement made by the petitioner, he is permitted to withdraw this petition with liberty to approach the Executive Engineer, Respondent No. 2 for redressal of his grievance.

The writ petition is accordingly dismissed as withdrawn.

Needless to state in the eventuality of petitioner approaching the authority, the said authority to act strictly in accordance with law.

Till one month from today, no coercive action shall be taken against the petitioner pursuant to the impugned notice.

Order Date :- 4.7.2023

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(Ashutosh Srivastava, J.) (Pritinker Diwaker, C.J.)